The issue is whether public officers can be held personally liable in tort for actions performed within the scope of their official duties, and whether public officers' immunity serves as a defense to such tort claims.

Under the public officers' immunity, it is a legal doctrine that protects government officials and employees from personal liability when performing their duties. This *immunity* is rooted in the public policy principle that individuals acting in the capacity of public office should be shielded from the threat of constant lawsuits, which could hinder their ability to perform their functions and serve the public effectively. **Under** 42 U.S.C. §1983, police officers may be held *liable for civil rights violations*; however, the doctrine of *qualified immunity* protects them from liability if their conduct did not violate established statutory or constitutional rights of which a reasonable person would have known. These are some of the people who are protected by this immunity:

- **Judicial**: Judges and other court officials performing tasks within the scope of their judicial responsibilities. They are immune from tort claims arising out of decisions made in their official capacity, even if those decisions are allegedly incorrect or unjust (Libby, n.d.).
- **Legislative**: Legislators who enjoy immunity from lawsuits regarding their actions in the course of lawmaking (Libby, n.d.).
- **Executive**: These types of executive officers include law enforcement officers, administrators, and public officials. They are generally granted to qualified immunity when performing duties related to law enforcement, public safety, or any official responsibility (LawShelf, n.d.; Libby, n.d.).
- **Government**: In specific instances, government employees such as teachers or social workers may be granted immunity when acting within the scope of their duties (LawShelf, n.d.).

Under 42 U.S.C. §1983 and the Public Officers' Immunity, there are two types of immunity can be applied to these people:

- **Absolute**: This absolute immunity offers full protection from liability for judges, legislators, and certain high-ranking executive officials (Libby, n.d.).
- **Qualified**: This qualified immunity shields government officials, such as police officers, from liability unless they violate established constitutional or statutory rights (NCSL, n.d.; Cornell Law, n.d.).

Here, public officers are protected by immunity to ensure they can carry out their responsibilities without the constant threat of litigation. For instance, judges and legislators have absolute immunity for their official actions, while executive officers, like police, typically have qualified immunity. The rationale behind public officers' immunity includes:

- **Discretionary Decision-Making**: Immunity supports the ability of public officers to make important decisions without fear of being sued (Libby, n.d.; NCSL, n.d.).
- **Protecting Public Interest**: Lawsuits against public officials may discourage decisive action or delay essential services, harming the public (Libby, n.d.).
- **Government Stability**: Lawsuits against public officers could undermine the efficiency and stability of government institutions (Libby, n.d.).
- **Preventing Lawsuits**: Immunity deters baseless legal claims that could arise from unpopular or controversial decisions made in good faith (Libby, n.d.).

A modern real-life example case based on the readings is *Pierson v. Ray* (1967), where the U.S. Supreme Court ruled that police officers were protected from liability for civil rights violations under 42 U.S.C. §1983, as long as their actions were taken in good faith and with probable cause. This case helped establish qualified immunity for law enforcement, emphasizing that officials should not be personally liable when carrying out their legal duties in unclear legal situations. Since then, the next important real case that was mentioned in the readings was in *Harlow v. Fitzgerald* (1982), which refined the standard by focusing on whether a right was "clearly established" at the time of the official's conduct, moving away from subjective intent. Furthermore, it also implies that some states, like Colorado and Connecticut, have limited qualified immunity under state law, allowing civil suits against law enforcement in cases of constitutional violations. This means that immunity may depend on what state you are in. For example, Colorado's SB 217 specifically removes qualified immunity as a defense in certain cases, ensuring officers can be held liable under state civil rights statutes.

In conclusion, public officers' immunity is a significant doctrine that ensures the effective functioning of government officials by shielding public officers from personal liability when acting within the scope of their duties, which balances individual rights against the need for efficient public administration. Real-life modern cases like *Pierson v. Ray* demonstrate how immunity enables public officers, especially in law enforcement, to carry out their duties without undue fear of litigation. By granting immunity, the legal system preserves government stability, protects discretionary decision-making, and discourages lawsuits, ensuring that officials can serve the public interest without being personally burdened by every consequence of their official actions.

Thank you.

-Victoria Lee

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Thank you and farewell!

Hello class,

As these are the last few weeks for the LGST 312 class, I want to say thank you to my classmates and professor. Learning with you has been a meaningful experience, and I've appreciated the insights and responses from many of you, sharing insightful discussions. This includes positive constructive criticism/feedback from my posts, discussions, and assignments! This course helped me understand the foundations of tort law, especially how it differs from criminal law. I can see how tort law focuses more on compensating victims and protecting individual rights, while

criminal law is aimed at punishing wrongdoers and protecting society. I learned how to analyze legal situations using the IRAC and FIRAC formats, which helped me break down cases in a structured way. Topics like intentional torts, defenses like self-defense and consent, and the important concept of negligence—made up of duty, breach, causation, and damages—all gave me a clearer picture of how civil liability works in practice.

Some interesting aspects of this class that I learned were exploring strict liability and product liability, and elaborating more on it after my previous BMGT/LGST classes, especially how someone can still be held responsible even if they weren't careless or intending harm, and all the possible defenses for the defendant (against a liability). Something unique that I hadn't learned from my BMGT classes was learning about police officer immunity and how certain legal protections are in place to allow public officials to do their jobs without the constant threat of lawsuits. This class also connects directly to other areas of legal study and is especially relevant to the field of business law. Understanding torts is essential for anyone working in or with a business because companies face legal risks every day, from potential negligence claims to product liability issues. Knowing the elements of a tort, the types of defenses available, and the differences between strict liability and negligence helps business professionals make smarter decisions to prevent lawsuits and protect their organization's reputation and finances. These legal principles also tie into contract law, employment law, and regulatory compliance—areas that are often interwoven in real-world business settings. This class has laid a strong foundation that I can carry forward into future legal studies and apply to practical business scenarios. And so, all of these topics opened my eyes to how the law balances fairness, protection, and responsibility. I'm grateful for the knowledge I've gained and the experience of learning it alongside such an engaged and thoughtful group.

(Optional) Since this is my last semester and graduating in May 2025, feel free to message me if you want to connect with me on LinkedIn as well. It would be wonderful to get to know future alumni/classmates of UMGC!

Once again, thank you and best of luck with your future endeavors!

Best regards,

Victoria

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Hello

Your post demonstrates excellence in using the readings' concepts about public officers' immunity while breaking down the law cogently. Your post was insightful as you explained the legal foundation and reasoning behind public officers' immunity by anchoring the case law *Harlow v. Fitzgerald* and *Hines v. French*. You have a valid point about the criteria under which qualified immunity applies, such as the official's role and whether the action was part of a discretionary function performed without malice. Your rationale correctly explained the complexity of "public officials'" immunity, such as how it protects public officials from constant litigation and promotes sound discretionary decision-making. I liked how you included the references to how immunity interacts with tort law, especially in the context of public policy and deterrence of frivolous lawsuits, which showed a deep understanding of the practical implications and societal purpose of the doctrine.

When comparing it to my post, I liked how your argument was more focused on how the doctrine functions in tort actions, such as the *Harlow* case, whereas my post was broader and integrated federal statutes (42 U.S.C. §1983) and noted variations across states that apply to these cases. Your post was very insightful as it demonstrated the law in judicial reasoning through *Hines*, which helps me understand how immunity is applied. Both contributions are informative, and even though my post was broader, your case-specific emphasis adds legal depth. Hypothetically, if we were to combine our posts, I think it would demonstrate a good breakdown of the whole concept this week.

A current example that I can think of demonstrating the complexity of public officers' immunity involves Elon Musk's recent designation as a *Special Government Employee (SGE)* under the Trump administration's Department of Government Efficiency (DOGE) initiative. According to the Department of Justice, an SGE is a person who works for the government for 130 days or fewer in 365 days, often to provide specialized expertise. Musk, who is unpaid in this role, is exempt from filing public financial disclosures, despite his significant private business interests through companies like Tesla and SpaceX (CBS News, 2025). While not a traditional public officer, Musk is still legally considered a government employee, and under certain circumstances, may be eligible for qualified immunity if sued for actions taken in his official capacity. This raises questions about potential conflicts of interest and the limits of immunity when private individuals take on temporary public roles. This example supports your argument about how immunity enables effective discretionary function without fear of litigation, while also matching similarities in my post on how immunity differs based on the type of role and legal context.

Overall, your post allowed me to see a different perspective on "public officers' immunity" and how it protects them or gives them immunity from liabilities against them. Thank you for taking the time to elaborate more on this and expand your thoughts to these immunities.

Best regards,

Victoria

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28 U.S.C. §§ 1346(b), 2671–2680 (2022).

28 U.S.C. § 2679 (2022).

42 U.S.C. § 1983 (2022).

Hello

Your post thoroughly explained the concept of public officers' immunity and how *qualified immunity* protects public officials from civil liability when performing discretionary duties unless they violate established constitutional or statutory rights. Your post was insightful as you elaborated more on what qualifies as a “public officers’ immunity” and “their rights” based on the landmark U.S. Supreme Court case *Harlow v. Fitzgerald* (1982), which is the standard for *qualified immunity* by focusing on whether a reasonable official would have known they were violating someone’s rights. You have a valid point that the public policy rationale behind this doctrine is to ensure that public officers can make timely, difficult, and sometimes unpopular decisions without fear of constant lawsuits, thereby promoting effective governance.

When comparing your post to my post, I noticed that your post emphasized the protective function of public officers' immunity to ensure effective and fearless governance, meanwhile, in my post I expanded the discussion by breaking down the two types of immunities—*absolute* and *qualified*—and the legal frameworks that govern them, such as 42 U.S.C. §1983. And other statutes and laws further elaborate on it for other specific cases, like in 28 U.S.C. §§ 1346(b), 2671–2680 (2022), 28 U.S.C. § 2679 (2022), and 42 U.S.C. § 1983 (2022). I also break down that it also depends on the state, where in Colorado’s SB 217, it restricts qualified immunity for law enforcement in civil rights cases. In contrast, your post was focused mainly on the legal issue and used the case law to explain the officials' immunity rights towards liability.

A modern real-life example that I can think of demonstrating both of our arguments is the March 2025 NATO Chiefs of Defense virtual meeting (NATO, 2025). According to NATO (2025), officials such as Admiral Giuseppe Cavo Dragone and General Christopher G. Cavoli are tasked with making high-stakes decisions involving international security and defense strategies. Based on your post, these leaders should be protected by public officers' immunity to ensure they can act decisively without fear of litigation, especially when decisions involve confidential intelligence or fast-moving military scenarios. Meanwhile, in my post, I also include other issues when considering accountability—if, for instance, a controversial NATO action led to political backlash, strained diplomatic relations, or significant budgetary consequences, there could be demands for oversight or transparency, challenging the scope of immunity. This scenario represents enabling effective decision-making in high-level government roles and ensuring that officials remain accountable for the broader impact of their actions, which lies at the heart of the debate between the two positions (NATO, 2025).

Overall, your post was insightful as you broke down public officers’ immunity based on the case law, and I found your arguments relatable to the current news so far. Thank you for sharing your thoughtful perspective and for elaborating on the concepts from a different perspective.

Best regards,

Victoria

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28 U.S.C. §§ 1346(b), 2671–2680 (2022).

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Hello

Your post eloquently breaks down the concepts about public officers' immunity and how it correlates to this week's readings. You have a valid point that the purpose of public officers' immunity is to distinguish between *absolute* and *qualified* immunity and protect the officials from possible liabilities with these immunities. I found your post insightful as you break down concisely and simplistically that absolute immunity applies to roles like judges and legislators, and qualified immunity typically applies to executive officials like officers/administrators when performing discretionary tasks. You demonstrate excellence in explaining this with the case law *Pearson v. Callahan* (555 U.S. 223 (2009)), which illustrated how the U.S. Supreme Court

upheld qualified immunity, allowing officers to act swiftly during urgent situations without the constant fear of litigation. This supports the doctrine's underlying public policy goal: enabling public officials to fulfill their responsibilities in the public interest without hesitation or personal financial risk.

When comparing this to my post, I liked how you focused on the legal framework and policy justifications behind public officers' immunity, meanwhile, I provided a more expansive and nuanced analysis, incorporating statutory laws like the 42 U.S.C. §1983 or state-level reforms like Colorado's SB 217. In contrast, I found your post insightful as you emphasized the need for decisiveness and protection in unpredictable/emergency cases, which explains the importance of immunity as essential for operational efficiency, while in my post, I acknowledge its role but urge checks and balances to prevent misuse and to uphold accountability.

A modern real-life example that aligns with both perspectives is the ongoing controversy surrounding Defense Secretary Pete Hegseth's use of the Signal app to discuss sensitive military operations (CNN, 2025). Based on the concepts and arguments in your post, Hegseth, as a high-ranking executive officer, should be able to communicate efficiently and securely without fearing personal legal consequences, especially when acting in what he believes to be the nation's interest. Meanwhile, based on my post, this perspective becomes highly relevant as members of Congress, particularly the minority party, are pushing for an investigation into whether those communications were appropriate or violated protocols. The legal and political debate over executive discretion versus oversight reflects the need to balance immunity with accountability, mirroring the core arguments of both of our arguments.

Overall, I found your post to allow me to see this from another perspective, out-of-the-box, and how your case law, *Pearson*, demonstrates public officers' immunity that is relatable to real-life cases on the news. Thank you for taking the time to share these thoughtful analyses about public officers' immunity.

Best regards,

Victoria

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28 U.S.C. §§ 1346(b), 2671–2680 (2022).

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42 U.S.C. § 1983 (2022).

Hello

Your post cogently explains the concepts about public officers' immunity, how it correlates to this week's readings, and correctly utilizes a case law scenario to demonstrate this. You make valid points that public officers' immunity is rooted in allowing officials to perform their duties without fear of constant litigation. I liked how you distinguished between *absolute* and *qualified immunity*, providing examples such as judges and prosecutors receiving absolute immunity and police officers receiving qualified immunity. You also include a case law *Harlow v. Fitzgerald* as a pivotal case defining qualified immunity based on whether a right was "clearly established."

When comparing my post to yours, I liked how you focused more on the conceptual and structural aspects of the doctrine, offering a broad policy rationale and categorization. In contrast, my post expands on statutory sources like 42 U.S.C. §1983 and how state laws like Colorado may limit immunity.

A real-life modern example that I noticed is according to Bobbi Reilly Sheahan, *Qualified Immunity Today*, FBI L. Enforcement Bull. (Oct. 10, 2023), our arguments blend well based on the case example presented in this article about the *Taylor v. Riojas* decision. Your argument and explanation of immunity's necessity for functional governance are grounded in public policy, while in my post, I acknowledge its limits, particularly in cases of egregious constitutional violations. The *Taylor* case demonstrates that while qualified immunity protects officials acting reasonably within the law, it is not an absolute shield against accountability when conduct is

unconstitutional. Together, both arguments affirm the value of immunity for protecting legitimate discretion while recognizing the judiciary's role in curbing abuses of power that violate fundamental rights.

Thank you for taking the time to break down these concepts into a more straightforward approach. Your post was insightful and thoughtful.

Best regards,

Victoria

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